

HOUSE No. 5638

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2026.

The committee on Ways and Means, to whom was referred the Senate Bill authorizing the town of Bourne to convey a right-of-way and easement (Senate, No. 3237), reports recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5638.

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the town of
2 Bourne, acting by and through its select board and conservation commission, may convey,
3 amend, assign or otherwise transfer to Algonquin Gas Transmission, LLC a 50- foot wide
4 permanent right-of-way and easement for: (i) the construction, maintenance and operation of
5 pipelines, together with any necessary or useful appurtenances thereto; (ii) the transmission of
6 natural gas and all by-products thereof; and (iii) permanent access roads necessary to access such
7 facilities. The easements may be granted under and through portions of the properties described
8 in subsection (b) currently held for conservation and recreation purposes pursuant to Article 97
9 of the Amendments to the Constitution of the Commonwealth.

10 (b) The properties on which the easements may be granted are located at: 0 Bournedale
11 Road and described in a deed recorded in the Barnstable county registry of deeds in book 14090,
12 page 282. The easement and permanent access roads are: (i) shown as “proposed new perm.
13 easement” and “perm. access rd” on a plan of land entitled “Area of Permanent Easement,
14 Permanent Access Road & Temporary Workspace Town of Bourne Under Care and Custody of
15 the Conservation Commission, G-31-MA-BA-001.DWG, Rev. E”, prepared by Vanasse Hangen
16 Brustlin, Inc. and dated July 24, 2025; and (ii) located at 0 Bournedale Road as described in a

17 deed recorded in the Barnstable county registry of deeds in book 20587, page 284, such
18 permanent access road more particularly shown as “perm. access rd” on a plan of land entitled
19 “Area of Permanent Access Road & Temporary Workspace Town of Bourne Conservation
20 Commission, G-31-MA-BA-006.DWG, Rev. B”, prepared by Vanasse Hangen Brustlin, Inc. and
21 dated July 24, 2025. The plans, as may be amended from time to time, are on file with the clerk
22 of the town of Bourne.

23 SECTION 2. In consideration for the conveyance authorized in section 1 and to ensure a
24 no net loss of land subject to Article 97 of the Amendments to the Constitution of the
25 Commonwealth, Algonquin Gas Transmission, LLC shall convey to the town of Bourne, under
26 the care, custody and control of the town’s conservation commission for conservation purposes
27 in accordance with said Article 97, a portion of a parcel of land containing approximately 2.76
28 acres, as described in a deed recorded in the Barnstable county registry of deeds in book 37507,
29 page 89. The portion of the parcel is shown as “proposed conveyance to the town of Bourne
30 Conservation Commission” on a plan entitled, “Algonquin Gas Transmission Proposed
31 Conveyance of Land to the Town of Bourne Scenic Hwy, Bourne, MA, Drawing Number SV-1”,
32 prepared by Vanasse Hangen Brustlin, Inc. and dated May 21, 2026, which plan is on file with
33 the clerk of the town of Bourne.

34 SECTION 3. This act shall take effect upon its passage.